

safety. (Compl. at pp. 19, 24, 27.) These facts might be sufficient to allege private nuisance, but not public nuisance. Plaintiff alleges no facts establishing any interference with a public right or any injury affecting the public at large. **SUSTAIN** to the extent Plaintiff alleges public nuisance.

II. Motion to Strike

The court may, upon a motion made pursuant to *Code of Civil Procedure* section 435:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(*Code of Civ. Proc. § 436.*) Motions to strike can be used to attack the entire pleading, or any part thereof. (*Code of Civil Procedure* section 435; *Warren v. Atchison, T. & S.F. Ry. Co.* (1971) 19 Cal.App.3d 24, 40.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from matter which the court may judicially notice. (*Code of Civ. Proc. § 436, subd. (a).*) "[T]he court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged." (*Washington Int'l Ins. Co. v. Superior Court* (1998) 62 Cal. App. 4th 981, 984, fn. 2.)

A motion to strike is the proper vehicle to attack a claim for punitive damages. (*Code of Civ. Proc. §§ 435-436; Truman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.) A plaintiff may recover exemplary or punitive damages where it is proven that "the defendant has been guilty of oppression, fraud or malice." (*Civ. Code § 3294, subd. (a).*)

Defendants move to strike punitive damages. However, fraud and fraudulent concealment are alleged against each of the defendants. (Compl. at pp. 14, 20-21, 25, 28-29.) A properly pleaded fraud claim will itself support recovery of punitive damages. No allegations of "malice" or intent to injure plaintiff are required, because fraud is an alternative basis for recovery. (*Stevens v. Sup. Ct. (St. Francis Med. Ctr.)* (1986) 180 Cal.App.3d 605, 610.) Here, Defendants do not challenge the fraud causes of action in the demurrer or in the motion to strike, thereby conceding they are properly alleged. **DENY.**

Counsel for Defendants shall give notice of this ruling.

8. Millen v. General Motors
LLC
26-1554736

Before the Court is Demurrer and Motion to Strike filed by General Motors, LLC (GM) as to the Complaint filed by plaintiff, Jared Millen. The Demurrer is **SUSTAINED**, with 14 days leave to amend and the Motion to Strike is **DENIED**.

Demurrer

The role of a demurrer is "to test the legal sufficiency of a complaint." (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994, citations omitted.) A demurrer challenges the defects appearing on the face of the pleading or from other matters properly subject to judicial notice. (See *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

7th Cause of Action: Fraud by Omission: Plaintiff has failed to plead sufficient facts to state a cause of action. (*Code of Civ. Proc. §430.10*; *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40-41 [elements]; *Cansino v. Bank of Am.* (2014) 224 Cal.App.4th 1462, 1469. [specificity required for fraud]; see also, Complaint ¶¶71-75 [allegations that dealer concealed material facts at time of sale insufficient.])

As to the fraud by omission cause of action, there are no allegations as to GM. Instead, the allegations are as to conduct by Connell. It appears the fraud allegations are entirely related to the upselling of an aftermarket device by Connell. Plaintiff alleges that by Connell installing the aftermarket device, such could be considered "tampering" which would result in denial of warranty coverage. However, there is no allegation GM was involved in the upselling.

Accordingly, the demurrer is **SUSTAINED**, with 14 days leave to amend.

8th Cause of Action: Unfair Competition: Plaintiff has failed to plead sufficient facts to state a cause of action. (*Business & Prof. Code, §17200*; *Cel-Tech Comm., Inc. v. Los Angeles Cellular Tele. Co.* (1999) 20 Cal. 4th 163, 180 [elements]; See also Complaint ¶¶79-84 [no specific facts pled as to GM]; *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 619 - "A plaintiff alleging unfair business practices under [the UCL] must state with reasonable particularity the facts supporting the statutory elements of the violation.")

Motion to Strike

A party may move to strike a pleading pursuant to *Code of Civil Procedure section 435*. In turn, *Code of Civil Procedure section 436* provides that a court may strike (a) "any irrelevant, false, or improper matter" in a pleading, or strike (b) all or any part of a pleading "not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court."

According to the notice of motion, GM moves to strike: "the following from the Complaint by Plaintiff Jared Millen: 'the demand for 'punitive damages' in the Complaint.'" (Complaint, p. 16:7-9.)" (Notice of Motion at 1:25-26)

Page 16, lines 7-9 of the complaint states: "PLAINTIFF PRAYS for judgment against Defendants Connell and Doe 1 as follows: ... i.

		Upon the expiration of 30 days after the notice required by <i>Civil Code § 1782(a)</i> is given, for punitive damages pursuant to <i>Civil Code § 1780(a)(4)</i>" Because GM lacks standing to challenge the claims made against Connell, the motion is DENIED. <i>GM is ordered to give notice of this ruling.</i>
9.	Bush v. California Cemetery and Funeral Services, LLC 24-1438792	Before the Court is a motion for summary judgment or in the alternative, summary adjudication filed by defendant SCI Shared Resources, LLC (Defendant or SCI Shared) on the Complaint of plaintiff Kesaia Bush (Plaintiff). For the reasons set forth below the motion for summary judgment is GRANTED. The new evidence submitted with the reply is untimely and not considered. (<i>Code of Civ. Proc. § 437c, subd. (b)(4).</i>) Defendant's request for judicial notice is GRANTED. (<i>Evid. Code § 452, subd. (d).</i>) Plaintiff's evidentiary objections are OVERRULED. Defendant's evidentiary objections to the declaration of Sandy T. Luu and Kesaia Bush are SUSTAINED as to nos. 1, 2, 38-42 based on relevance and OVERRULED as to nos. 3-37. The Court declines to rule on Defendant's other "evidentiary" objections, which are procedurally improper. Written objections must go to specific evidence, not facts stated in the separate statement or response to separate statement. (<i>Cal. Rules of Court, rule 3.1354(b).</i>) Plaintiff alleges SCI Shared is jointly liable with defendant California Cemetery and Funeral Services, LLC (CCFS) as her employer. (Compl. ¶¶ 5, 7.) On July 2, 2026, the Court granted CCFS' motion for summary judgment, finding that Plaintiff failed to meet her shifted burden to show a triable issue of fact as to CCFS' liability. The Court grants SCI's motion for summary judgment for the same reasons it grants CCFS' motion. (ROA 244.) 1st and 2nd causes of action (discrimination and retaliation) For summary judgment purposes, "[i]n an employment discrimination case, the employer, as the moving party, has the initial burden to present admissible evidence showing either that one or more elements of plaintiff's prima facie case is lacking or that the adverse employment action was based upon legitimate, nondiscriminatory factors." (<i>Hicks v. KNTV Television, Inc.</i> (2008) 160 Cal.App.4th 994, 1003; <i>Cornell v. Berkeley Tennis Club</i> (2017) 18 Cal.App.5th 908, 926.) "If the employer meets its initial burden in this manner, the plaintiff then has the burden to produce 'substantial evidence that the employer's stated nondiscriminatory reason for the adverse action was untrue or pretextual, or evidence the